

# Sexual Identity and Gender Identity

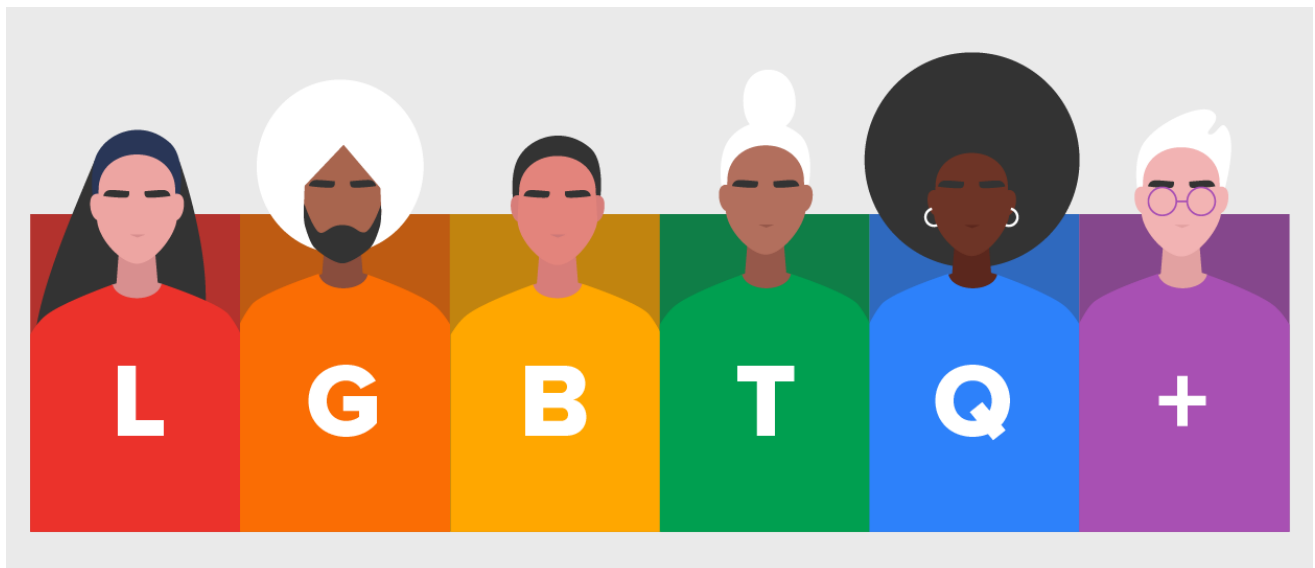
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## WHAT'S COVERED

In this lesson, you will learn about the legal and ethical obligations to people related to their sexual and gender identity. Specifically, this lesson will cover:

## 1. Sexual Identity



Workplace discrimination against people for sexual identity means treating someone differently because they identify as gay or lesbian (homosexual), bisexual, or straight (heterosexual), or because their gender identity is different from the gender on their birth certificate. These groups are often represented by the initialism LGBTQ or **LGBTQ+**, for lesbian, gay, bisexual, trans, queer, plus other groups of marginalized sexual and gender identities.

Discrimination may also be based on an individual's association with someone of a different sexual orientation. For example, a person may be teased or bullied for having "two moms" or a trans daughter. Forms that such discrimination may take in the workplace include denial of opportunities, termination, sexual assault, as well as the use of offensive terms, stereotyping, and other harassment. As with people of color, people who do not fit with traditional gender and sex roles may also face a number of microaggressions at work, unintended slights such as presuming spouses and partners are of the opposite sex. While heterosexual people usually place photos of their partner or family at their desk, somebody in a same-sex relationship may be less comfortable doing so after being asked repeatedly who is in the picture.

## IN CONTEXT

Matthew Shepard was a 21-year-old student at the University of Wyoming when he was brutally beaten, tied to a fence, and left to die in October 1998. The motive for the attack was anti-gay hatred, and his death sparked national outrage and highlighted the prevalence of hate crimes against the LGBTQ+ community.

In response to Shepard's death, lawmakers introduced the Matthew Shepard and James Byrd Jr. Hate Crimes Prevention Act, which expanded federal hate crime legislation to include crimes motivated by a victim's sexual orientation, gender identity, or disability. The bill was introduced in Congress multiple times but faced opposition from conservative lawmakers who argued that it infringed on free speech and would criminalize religious beliefs.

However, the persistence of Shepard's family and LGBTQ+ advocacy groups eventually led to the bill's passage in 2009. President Obama signed it into law, stating that it was a "victory for Judy Shepard, and for the families, friends, and communities who have been victimized by hate crimes."

The legacy of Matthew Shepard also led to increased awareness and advocacy for LGBTQ+ rights and protections. His death sparked conversations about hate crimes and discrimination, and inspired many to speak out against homophobia and transphobia. Shepard's mother, Judy, has become a vocal advocate for LGBTQ+ rights and travels the country to speak about her son's legacy and the importance of ending hate crimes.

Although the U.S. Supreme Court ruled in *United States v. Windsor* (2013) that Section 3 of the 1996 Defense of Marriage Act (which had restricted the federal interpretations of "marriage" and "spouse" to opposite-sex unions) was unconstitutional, and guaranteed same-sex couples the right to marry in *Obergefell v. Hodges* (2015), marital status has little or no direct applicability to the circumstances of someone's employment. In terms of legal protections at work, the LGBTQ+ community had been at a disadvantage because Title VII of the CRA was not interpreted to address sexual orientation, and federal law did not prohibit discrimination based on this characteristic. In the 2020 Supreme Court case *Bostock v. Clayton County*, the Court held that discrimination based on "sex" includes discrimination based on sexual orientation and gender identity.

While the 2020 Supreme Court decision extended protection in terms of employment considerations, discrimination in other forms remains. For example, a proposed law named the Equality Act is a federal LGBTQ+ nondiscrimination bill that would provide protections for LGBTQ+ individuals in employment, housing, credit, and education. Like the Equal Rights Amendment, the Equality Act is not yet officially law. One change *Obergefell v. Hodges* did bring to the country is a wider acceptance of LGBTQ+ people. In surveys, 70% of people say they support the Equality Act. But unless—and until—it passes, it remains up to the business community to provide protections consistent with those provided under federal law for other employees or applicants.



## TERMS TO KNOW

### LGBTQ+

An initialism for lesbian, gay, bisexual, trans, queer, plus other groups of marginalized sexual and gender identities.

## 2. Gender Identity

As noted above, acceptance of sexual orientation has become widespread over the last twenty years, though specific experiences may vary by region. Gender identity, the “TQ+” part of LGBTQ+, lags behind in public awareness and support—that is, **transgender** and **nonbinary** people. Transgender people identify as the opposite gender from the one they were assigned at birth; nonbinary people do not identify solely as either gender. (Other terms like “genderqueer” also exist, which represent slight differences in an identity that does not match either traditional male or female roles; for our purposes, we will use nonbinary as an umbrella term.) **Cisgender**, often shortened to cis, refers to people who do identify with the sex on their birth certificate.

Note that gender identity is not the same as sexual identity; a trans woman may be heterosexual (attracted to men), lesbian (attracted to women), bisexual, or have another sexual orientation. Gender identity is also not the same as **gender expression**, which is how a person publicly displays their gender. Even among cis people, you might see some women who prefer jeans and sweatshirts, and others who like to wear makeup and dresses, but both identify completely as women; their gender expression is simply variable. Similarly, cis men may have styled hair and wear bright colors and jewelry. In business ethics, we can consider the full range of people who have a gender identity or expression that does not align with traditional gender roles of the ones they were assigned at birth.

Respecting and supporting gender identity and gender expression also involves change to business operations, such as:

- Asking for preferred pronouns and preferred names.
- Allowing people to use the bathroom of their gender identity.
- Revising forms with personal information to include more than the traditional male/female gender options.
- Providing paths through human resources to transition.
- Providing health insurance that supports medical transitions.
- Using singular “they” as an all-purpose pronoun in work-related writing.

Work policies only address the ethical minimum for trans and nonbinary people. In 2020, the Supreme Court affirmed the ethical minimum of workplace protections for trans people in *Bostock v. Clayton County*, which prevents anti-transgender discrimination in employment. But the ethical obligations of a workplace committed to supporting all workers is much greater. According to the National Center on Transgender Equality, trans or nonbinary people are more likely to face harassment and discrimination than any other group, with 75% of trans people reporting harassment or discrimination, and 25% reporting that they’d been fired for their gender identity (2012). Outside of work, trans and nonbinary people are more likely to experience sexual violence, more likely to be denied service, and more likely to not receive healthcare, among other forms of discrimination. A workplace committed to making trans and nonbinary people feel included must thus be prepared to change their culture, beginning with the code of ethics and how it accommodates people with trans or nonbinary identities as well as the policies that protect them. It is likely to also involve both formal and informal training of the entire staff to understand and respect trans and nonbinary people.



### TERMS TO KNOW

#### **Transgender**

A person who identifies as the opposite gender from the one on their birth certificate.

#### **Cisgender**

A person who identifies as the gender on their birth certificate.

#### **Nonbinary**

A person who does not have a strictly male or female identity.

#### **Gender Expression**

How a person publicly displays their gender.

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## **3. Ethical Considerations**

In the absence of a specific law, LGBTQ+ issues present a unique opportunity for ethical leadership. Many companies choose to do the ethically and socially responsible thing and treat all workers equitably, for example, by extending the same benefits to same-sex partners that they extend to opposite-sex spouses. Ethical leaders are also willing to listen and be considerate when dealing with employees who may still be coming to an understanding of their gender identification.

Financial and performance-related considerations come into play as well. Denver Investments analyzed the stock performance of companies before and after their adoption of LGBTQ+-inclusive workplace policies. Companies that adopted LGBTQ+-inclusive workplace policies outperformed their peers in various industries. Once again, being ethical does not mean losing money or performing poorly. In fact, states that have passed legislation considered anti-LGBTQ+ by the wider U.S. community, such as the Religious Freedom Restoration Act in Indiana or North Carolina's HB2, the infamous "bathroom bill" that would require transgender individuals to use the restroom corresponding with the gender on their birth certificate, have experienced significant economic pushback. These states have seen statewide and targeted boycotts by consumers, major corporations, national organizations such as the National Collegiate Athletic Association, and even other cities and states. In 2016, in response to HB2, nearly 70 large U.S. companies, including American Airlines, Apple, DuPont, General Electric, IBM, Morgan Stanley, and Wal-Mart, signed an amicus ("friend of the court") brief in opposition to the unpopular North Carolina bill. In 2017, the North Carolina legislature replaced the law, and a 2019 court settlement substantially altered it; however, the remaining North Carolina law limits local municipalities' protections for LGBTQ+ people. Indiana's Religious Freedom Restoration Act evoked a similar backlash in 2015, and public criticism from U.S. businesses.

To assess LGBTQ+ equality policies at a corporate level, the Human Rights Campaign foundation publishes an annual Corporate Equality Index (CEI) of approximately 1,000 large U.S. companies and scores each on a scale of 0 to 100 on the basis of how LGBTQ+-friendly its benefits and employment policies are. More than 600 companies recently earned a perfect score in the 2018 CEI, including such household names as AT&T, Boeing, Coca-Cola, Gap Inc., General Motors, Johnson & Johnson, Kellogg, United Parcel Service, and Xerox.

Another organization tracking LGBTQ+ equality and inclusion in the workplace is the National LGBT Chamber of Commerce, which issues third-party certification for businesses that are majority-owned by LGBTQ individuals. There are currently more than 1,000 LGBTQ+-certified business enterprises across the country, although California, New York, Texas, Florida, and Georgia account for approximately 50% of them. Although these are all top-ranked states for new business startups in general, they are also home to multiple Fortune 500 companies whose diversity programs encourage LGBTQ+-certified businesses to become part of their supply chains. Examples of large LGBTQ+-friendly companies with headquarters in these states are American Airlines, JPMorgan Chase, SunTrust Bank, and Pacific Gas & Electric.



### **SUMMARY**

In this lesson, you learned how **sexual identity** and **gender identity** are important aspects of one's

identity and can significantly impact workplace interactions and relationships. Employees have the right to feel safe and respected in their workplace, regardless of their sexual or gender identity. Employers have an **ethical responsibility** to create a workplace culture that values diversity and inclusivity, and to implement policies and procedures that prevent discrimination and harassment based on sexual or gender identity. By promoting equality and respect, employers can create a more productive and positive work environment for all employees.

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## REFERENCES

National Center for Transgender Equality (2012, September 11). National Transgender Discrimination Survey: Full Report. [transequality.org/issues/resources/national-transgender-discrimination-survey-full-report](https://transequality.org/issues/resources/national-transgender-discrimination-survey-full-report)



## TERMS TO KNOW

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A person who identifies as the gender on their birth certificate.

### Gender Expression

How a person publicly displays their gender.

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### Nonbinary

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### Transgender

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